

DUI ARRESTS

When you drive in California, you consent to a breath, blood, or urine test if a law enforcement officer suspects you of DUI. If you agreed to take a preliminary alcohol screening (PAS) or breath test, you may still be required to take a blood or urine test to detect the presence of drugs. If you refuse, DMV will suspend or revoke your driving privilege. If you are arrested for DUI:

- California's Administrative Per Se law requires DMV to suspend your driving privilege.
- The law enforcement officer may take your driver's license and give you a temporary driver's license for 30 days.
- You may request a DMV administrative hearing within 10 days from the date of your arrest.

DUI CONVICTIONS

If you are convicted of a DUI, DMV will suspend or revoke your driving privilege for one year. And you:

- Must complete a DUI program.
- Must file a California Insurance Proof Certificate (SR 22/SR 1P).
- Must pay any applicable license reissue or restriction fees.
- May be required to install an ignition interlock device (IID) on your vehicle.

Here are some additional penalties if you are convicted of DUI:

- You may be sentenced to up to six months in jail.
- You may have to pay a fine.
- Law enforcement may impound your vehicle and you may have to pay a storage fee.
- If you cause serious injury or death while driving under the influence of drugs or alcohol, you may face civil lawsuits.

All DUI convictions remain on your driver's record for 10 years. If you get any other DUIs during that time, the court or DMV may give you an additional penalty.